

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA**

JOSEPH KIRCHNER,
Plaintiff,

v.

MIKE JOHNSON et al.,
Defendants.

Case No. 1:25-cv-02735-ACR

**PLAINTIFF'S UNOPPOSED MOTION FOR
LEAVE TO FILE EXCESS PAGES FOR
OPPOSITIONS TO DEFENDANTS' MOTIONS TO
DISMISS (ECF NOS. 69, 70)**

Plaintiff Joseph Kirchner, proceeding pro se, respectfully moves the Court pursuant to Local Civil Rule 7(e) for leave to exceed the 45-page limitation for his oppositions to the two motions to dismiss now pending: the Federal Defendants' Motion to Dismiss (ECF No. 69) and the Corporate Defendants' Joint Motion to Dismiss (ECF No. 70). No Defendant opposes the relief requested. *See* § II, *infra*. In support, Plaintiff states as follows:

I. RELIEF REQUESTED

Plaintiff requests leave to file each of his two oppositions at not more than **sixty (60) pages**, all-inclusive. Declarations and exhibits filed as separate attachments are not affected. Plaintiff notes that this Court's Standing Order requires every memorandum of ten pages or longer to contain a table of contents and a table of authorities, Standing Order § 7(b) (Mar. 4, 2026), and for oppositions of this scope those required tables themselves occupy several pages of the total.

Both oppositions are due August 28, 2026, under the Court's Minute Order of May 28, 2026. Plaintiff files this motion so that it may be resolved before the oppositions are finalized, and so that no deadline in the Court's schedule is affected. So that nothing of Plaintiff's delays resolution, Plaintiff waives his reply under Local Civil Rule 7(d). Because every Defendant has stated that it does not oppose the relief (§ II, *infra*), the motion stands submitted upon filing: the

ordinary fourteen-day response period would otherwise run to August 27, the day before the oppositions are due, and no opposition is anticipated from any party. Given that posture, Plaintiff respectfully requests that the Court consider the motion in advance of the August 28 deadline. Plaintiff could not responsibly have quantified this request materially earlier: the commissioned transcripts of the 1607 Star Chamber record on which the immunity analysis rests (§ IV.A, *infra*) were not delivered until August 4, 2026, and the transcriber's declaration submitted as Exhibit 1 was not executed until August 11, 2026, so the scope of what the oppositions can present with certainty settled only days before this filing.

II. LCvR 7(m) STATEMENT

Pursuant to Local Civil Rule 7(m) and Standing Order § 7(h), Plaintiff conferred with counsel for the Federal Defendants and counsel for the Corporate Defendants by email on August 11, 2026. Counsel for the Corporate Defendants responded on August 12, 2026, that the Corporate Defendants do not oppose the requested relief, while reserving the right to meet and confer regarding the number of pages and the deadline for their reply upon receipt of the oppositions. Following a second email from Plaintiff on August 13, 2026, counsel for the Federal Defendants responded that day that the Federal Defendants do not oppose the requested relief.

III. BACKGROUND

The Third Amended Complaint (ECF No. 51) pleads eighteen counts against ten defendants: five federal and five corporate. At the May 28, 2026 status conference the Court directed Defendants to file their motions to dismiss "according to the parameters set forth by the Court," and set the briefing schedule: motions by July 15, oppositions by August 28, replies by September 18. Minute Order of May 28, 2026. The parameters set at the hearing included a

forty-five-page limit for the motions (the limit Local Civil Rule 7(e) otherwise supplies), with briefing intervals of roughly forty-five days.

On July 15, Defendants filed two separate motions. The Federal Defendants filed a combined motion and memorandum of thirty-seven pages (ECF No. 69), raising sovereign immunity, qualified immunity, the Speech or Debate Clause, the *Bivens* special-factors framework, standing, service, and Rule 8, each pressed as an independent ground for dismissal. The five Corporate Defendants filed a joint motion (ECF No. 70) supported by a memorandum (ECF No. 70-1) whose argument body runs forty-eight numbered pages, fifty-nine in all with its tables, attacking every count on multiple independent grounds under Rules 12(b)(1), 12(b)(2), and 12(b)(6). The forty-five-page figure was not only the rule's, but the parameter the Court itself set at the hearing; Plaintiff, by this motion, asks first.

IV. GROUNDS

A. The Federal Motion's Immunity Defenses Require Bottom-up, Genealogical Treatment

Most of the defenses raised in ECF No. 69 are answered the ordinary way: by construing text. A defense answered by construing enacted text can be answered compactly, because the authority is a provision that can be set out in a sentence. The immunity defenses are categorically different. No constitutional text confers the immunities the motion invokes; the Supreme Court has grounded them not in any express constitutional provision but in historical tradition and precedent. *See Trump v. United States*, 603 U.S. 593 (2024) (presidential immunity resting on structure and precedent); *Harlow v. Fitzgerald*, 457 U.S. 800 (1982) (qualified immunity resting on common-law tradition and policy). The authority for immunity *is* a chain of decisions: *Harlow* rests on its predecessors; the chain runs through *Spalding v. Vilas*, 161 U.S. 483 (1896), and *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335 (1872), to *Randall v. Brigham*, 74

U.S. (7 Wall.) 523 (1868), which first imported the rule, by citation and without examination, from the English common law whose foundation is *Floyd v. Barker*, 12 Co. Rep. 23, 77 Eng. Rep. 1305 (Star Chamber 1607). *See also* the manner of its transmission: the later annotated edition of the United States Reports carries the rule's catalogue forward at *Kendall v. Stokes*, 44 U.S. (3 How.) 87 n., in a publisher's annotation absent from the original 1845 edition, rendering the foundation "Lloyd v. Baker" and its New York conduit "Gates v. Lansing"; and the recorded dissent in that conduit, *Yates v. Lansing*, 9 Johns. 395, 431–33 (N.Y. 1811) (Clinton, Sen., dissenting), is engaged by no decision in the line.

A defense whose authority is a pedigree can only be answered by walking the pedigree: demonstrating, link by link, what each decision actually decided, what each assumed, and what the record at the foundation actually contains: a primary-source manuscript record no court in the chain has ever examined. That record survives as Star Chamber file STAC 8/203/38, held by The National Archives of the United Kingdom. Plaintiff ordered its record copy on June 16, 2026, and the commission for its first professional transcription, by an independent specialist in early-modern English legal palaeography, was accepted on July 14, 2026, before Defendants filed their motions; the commissioned transcripts, prepared from the original membranes and collated against them at Kew, were delivered on August 4, 2026. The transcriber's executed declaration, submitted with this motion as Exhibit 1 and to accompany the oppositions, sets out the record, the completed transcription, and his qualifications and method. The immunity questions were taken up at the May 28 hearing itself, and Plaintiff's opposition addresses *Trump v. United States* fully. For the avoidance of doubt, all relief the oppositions request rests, at the Rule 12 pleading stage, on the operative immunity authorities, *Harlow v. Fitzgerald* and *Trump v. United States* and their progeny, as applied to the pleaded facts; nothing at this stage turns on

the Court's reception of the 1607 record itself. That record completes the documentary foundation the operative framework assumes; it does not displace it.

The purpose of the added length is therefore disclosed with precision: the pages walk the pedigree the motions themselves invoke, and they ask the Court to overrule nothing. A question no court in the lineage examined or decided is not foreclosed, *see Webster v. Fall*, 266 U.S. 507, 511 (1925), and to adjudicate a defense the movants have tendered is only the ordinary duty "to say what the law is," *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 177 (1803). This bottom-up analysis, already made as concise as its subject permits, from a 1607 Star Chamber record forward through four centuries of case law to the modern framework, cannot be compressed to the length of clause construction. The added length is the argument, not padding around it.

B. The Corporate Joint Memorandum's Own Length Requires a Response in Kind

The Corporate Defendants' joint memorandum consolidates the Rule 12 briefing of five separately represented defendants into a single 48-page argument body directed at all eighteen counts, with standing, personal-jurisdiction, and merits grounds pressed in the alternative, and dismissal sought with prejudice. Each independently dispositive ground must be independently answered, as must each of the seven independent grounds the federal motion presses (*supra* § III); an argument left unanswered is an argument potentially conceded. A single pro se plaintiff answering the coordinated 48-page product of five defense firms within 45 pages would face precisely the asymmetry the page-limit rule exists to prevent. Plaintiff asks only for space commensurate with what the movants themselves took.

C. Both Motions Require Correction Before Argument, Which Multiplies the Space Each Point Needs

Where a motion states the pleading and the authorities accurately, an opposition may simply argue. Where it does not, the opposition must first restore what the pleading actually says, then what the authority actually holds, and only then make the argument: three steps in place of one. Both memoranda repeatedly put Plaintiff to that three-step task. Illustrative examples, each verifiable from the cited page (page citations to the two memoranda refer to their printed pagination): the federal memorandum attributes its Rule 12(b)(1) standard quotation to *Vico Products Co. v. NLRB*, an NLRB enforcement decision containing no Rule 12 discussion (the quoted language in fact appears in *Coalition for Underground Expansion v. Mineta*, 333 F.3d 193, 198 (D.C. Cir. 2003), the decision that ends on the reporter page where *Vico Products* begins), ECF No. 69 at 4; supports propositions about the *United States'* sovereign immunity with decisions addressing *state* sovereign immunity, ECF No. 69 at 13–14; and cites a docket entry, "ECF No. 54-24," that does not appear on the docket, ECF No. 69 at 27. The corporate memorandum attributes to the Complaint a quotation (that the FBI deemed Plaintiff's evidence "not credible") that appears nowhere in the pleading, ECF No. 70-1 at 2; and supports a narrowing construction of wire fraud with a parenthetical whose operative term ("primary aim") appears nowhere in the cited opinion, which affirmed a wire-fraud conviction, ECF No. 70-1 at 17.

Plaintiff does not catalogue these instances here to argue them (that is the oppositions' office) but because they define the space the oppositions require: each such point obliges Plaintiff to quote the pleading, quote the authority, and cite the record, where a one-sentence answer would otherwise have sufficed. That burden arises from the manner of the motions' briefing, not from any prolixity of Plaintiff's.

D. Plaintiff Has Already Economized, and No Party is Prejudiced

Plaintiff has taken affirmative measures to conserve length: the service arguments the federal motion renews were already fully briefed in Plaintiff's filed reply (ECF No. 68), to which the opposition refers the Court in a short section rather than re-briefing them; analyses common to both motions are made once and cross-referenced between the two oppositions rather than duplicated; and the historical record underlying the immunity analysis is presented through accompanying declarations rather than in the brief's body wherever possible. The request made here is what remains after those measures.

No prejudice attends the relief, and no party claims any: both the Corporate and the Federal Defendants have stated that they do not oppose it (§ II, *supra*). The briefing schedule is unaffected: the oppositions will be filed on or before August 28, 2026, and Defendants retain their reply date of September 18, 2026. Defendants collectively filed ninety-six pages across their two motions; leave for Plaintiff to answer within sixty pages per opposition is proportionate to the briefing it must meet, and within one page of what the Corporate Defendants' single memorandum already ran, all-inclusive, without leave. Plaintiff, for his part, would not oppose a commensurate enlargement of Defendants' reply page limits. The measure, moreover, is per memorandum: Local Civil Rule 7(e)'s limitation applies to each memorandum separately, and each opposition here answers a separate motion that independently attacks the pleading. The May 28 parameters were set before any motion existed; this request responds to what the motions turned out to be.

V. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court grant this unopposed motion and permit him to file each of his two oppositions, to ECF No. 69 and to ECF

No. 70, at not more than sixty (60) pages each, all-inclusive, or at such other enlarged limit as the Court deems appropriate, with declarations and exhibits filed as separate attachments unaffected. A proposed order is submitted herewith, together with the executed declaration of Christopher Whittick as Exhibit 1, and a Word version of the proposed order will be provided to Chambers pursuant to Standing Order § 7(e).

Respectfully submitted,

/s/ Joseph Kirchner

JOSEPH KIRCHNER

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Dated: August 13, 2026

CERTIFICATE OF SERVICE

I hereby certify that on this 13th day of August, 2026, I caused the foregoing **Plaintiff's Unopposed Motion for Leave to File Excess Pages for Oppositions to Defendants' Motions to Dismiss (ECF Nos. 69, 70)**, together with its attachments, to be served on all counsel of record via the Court's CM/ECF system.

/s/ Joseph Kirchner

JOSEPH KIRCHNER

Pro Se Plaintiff

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JOSEPH KIRCHNER,
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Case No. 1:25-cv-02735-ACR
[PROPOSED] ORDER GRANTING
PLAINTIFF'S UNOPPOSED MOTION FOR
LEAVE TO FILE EXCESS PAGES

Upon consideration of Plaintiff's Unopposed Motion for Leave to File Excess Pages for Oppositions to Defendants' Motions to Dismiss (ECF Nos. 69, 70), and the entire record herein, it is hereby:

ORDERED that the Motion is **GRANTED**; and it is further

ORDERED that Plaintiff may file his Opposition to the Federal Defendants' Motion to Dismiss (ECF No. 69) and his Opposition to the Corporate Defendants' Joint Motion to Dismiss (ECF No. 70) each at not more than sixty (60) pages; and it is further

ORDERED that all other deadlines in the Court's Minute Order of May 28, 2026, including Plaintiff's opposition deadline of August 28, 2026, and Defendants' reply deadline of September 18, 2026, remain unchanged.

SO ORDERED.

Dated: _____, 2026

ANA C. REYES
United States District Judge

Pursuant to LCvR 7(k), all parties of record are entitled to be notified of the entry of this Order and will receive notice via the Court's CM/ECF system.